

And whereas the Army Act and the Air Force Act will expire with the thirty-first day of July, nineteen hundred and fifty-three:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1953.

Army Act and
Air Force Act
to be in force
for specified
time.

2.—(1) The Army Act and the Air Force Act shall be and remain in force from the first day of August, nineteen hundred and fifty-three to the thirty-first day of July, nineteen hundred and fifty-four, both inclusive, and no longer unless otherwise provided by Parliament.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject, as the case may be, to military law or to the Air Force Act wherever they may be.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or the Air Force Act by reason only that the numbers of the forces for the time being in the service of Her Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

CHAPTER 32

An Act to make further provision as to the substances other than penicillin to which the Penicillin Act, 1947, may be applied by regulations and to provide for relaxing in certain cases the restrictions imposed by that Act.
[14th July 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Substances
to which

Penicillin Act,
1947, applies.

10 & 11 Geo. 6.
c. 29.

1.—(1) For section two of the Penicillin Act, 1947 (which limits the application of that Act to penicillin and other anti-microbial organic substances produced by living organisms and substances having chemical properties identical with or similar

to anti-microbial organic substances so produced), the following section shall be substituted:—

“2.—(1) The substances to which this Act applies are penicillin and such other therapeutic substances as may be prescribed by regulations made by the Minister of Health, the Secretary of State and the Minister of Health and Local Government for Northern Ireland, jointly, after consultation with the Medical Research Council, being substances appearing to those Ministers to be capable of causing danger to the health of the community if used without proper safeguards.

(2) The power of making regulations under this section shall be exercisable by statutory instrument, and any such instrument shall be subject to annulment in pursuance of a resolution of either House of Parliament”.

(2) The Streptomycin Regulations, 1948, and the Aureomycin and Chloramphenicol Regulations, 1951 (which were made under the said section two), shall continue in force and shall have effect as if they had been made under the section substituted by this section for the said section two.

2.—(1) Subsection (1) of section one of the Penicillin Act, 1947 (which prohibits the sale or supply of any substance to which that Act applies, and of any preparation of which such a substance is an ingredient or part, except by the persons and in the circumstances specified in that subsection), shall not apply to the sale or supply of a substance or preparation specified in regulations under this section if it is sold or supplied in such circumstances and in accordance with such conditions as may be so specified.

Power to relax
restrictions
imposed by
Penicillin
Act, 1947.

(2) The power of making regulations under this section shall be exercisable by the Minister of Health, the Secretary of State and the Minister of Health and Local Government for Northern Ireland, jointly, after consultation with the Medical Research Council and, in the case of regulations appearing to those Ministers to concern agricultural matters, with the Agricultural Research Council.

(3) The said power shall be exercisable by statutory instrument, and any such instrument shall be subject to annulment in pursuance of a resolution of either House of Parliament.

3. For the purposes of section six of the Government of Ireland Act, 1920, this Act and the Penicillin Acts, 1947 and 1951, shall be deemed to be Acts passed before the day appointed for the purposes of that section, but nothing in this section shall

Provision as
to Northern
Ireland.
10 & 11 Geo. 5.
c. 67.

be construed as extending the legislative powers of the Parliament of Northern Ireland under section four of the Government of Ireland Act, 1920.

Short title and
citation.

4. This Act may be cited as the Therapeutic Substances (Prevention of Misuse) Act, 1953, and this Act and the Penicillin Acts, 1947 and 1951, may be cited together as the Therapeutic Substances (Prevention of Misuse) Acts, 1947 to 1953.

CHAPTER 33

Education (Miscellaneous Provisions) Act, 1953

ARRANGEMENT OF SECTIONS

Section

1. Extension of definition of "displaced pupils" for purposes of s. 104 of principal Act.
2. Power of Minister, in certain circumstances, to require local education authority to defray expenses of establishing a controlled school.
3. Extension of power of Minister to require local education authority to pay for enlargement of a controlled school.
4. Duties of local education authorities in England and Wales as to dental treatment.
5. Duties of education authorities in Scotland as to dental treatment.
6. Provision of education at non-maintained schools and payment of tuition and boarding fees for pupils attending thereat.
7. Recoupment to local education authority of cost of providing further education for persons not belonging to their area.
8. Amendments of ss. 103 to 105 of principal Act as to matters in respect of which Minister may make grants and loans.
9. Amendment of s. 85 of principal Act.
10. Amendment of procedure for making school attendance orders.
11. Amendment of principal Act with respect to enforcement of school attendance.
12. Provisions with respect to transport of certain pupils.
13. Removal of disqualification of persons employed in schools, &c., for appointment to children's committees.
14. Power of Minister to modify certain trusts.
15. Relaxation of obligation to send to Minister assurances of property for educational purposes.
16. Reduction of period for objection to proposals for establishment, maintenance or discontinuance of schools.